

Whangarei District Council Meeting Minutes

Date: Tuesday, 16 July, 2024

Time: 9:00 a.m.

Location: Civic Centre, Te Iwitahi, 9 Rust Avenue

In Attendance

His Worship the Mayor Vince Cocurullo

Cr Gavin Benney

Cr Nicholas Connop

Cr Ken Couper

Cr Jayne Golightly (Teams)

Cr Phil Halse

Cr Deborah Harding

Cr Patrick Holmes

Cr Scott McKenzie

Cr Marie Olsen (Teams)

Cr Carol Peters

Cr Simon Reid

Cr Paul Yovich

Not in Attendance

Cr Phoenix Ruka

Also present

Bryce Henderson, Deloitte Limited

Scribe

C Brindle (Senior Democracy Adviser)

1. Karakia/Prayer

His Worship the Mayor opened the meeting with a karakia/prayer.

3. Apology / Kore Tae Mai

Cr Phoenix Ruka

Moved By Cr Deborah Harding

Seconded By Cr Nicholas Connop

That the apology be sustained.

Carried

Cr Peters joined the meeting at 9.01am following the apologies.

4. Decision Reports / Whakatauripoata

4.1 Development Contributions Policy 2024 Adoption

Moved By His Worship the Mayor

Seconded By Cr Patrick Holmes

That the Council:

1. Approve and Adopt the Development Contributions Policy 2024 in accordance with Section 102 of the Local Government Act 2002.
2. Authorises the Chief Executive to make any necessary drafting, typographical or presentation changes or corrections to the Development Contributions Policy 2024 prior to the document being published.

Carried

4.2 Revenue and Financing Policy - 2024-34

Moved By His Worship the Mayor

Seconded By Cr Ken Couper

That Council:

1. Receive the information.
2. Adopt the Revenue and Financing Policy (having undertaken the Special Consultative Procedure, in accordance with sections 82, 82A and 102 of the Local Government Act 2002).
3. Authorise the Chief Executive to make minor amendments, drafting, typographical or presentation corrections necessary to the Revenue and Financing Policy.

Carried

4.3 Adoption of the 2024-34 Long Term Plan

Subsequent to the agenda being circulated Item 4.3.1 providing the Audit Opinion was distributed.

Moved By His Worship the Mayor

Seconded By Cr Scott McKenzie

That the Council:

1. Adopt the 2024-34 Long Term Plan.
2. Resolve to carry forward unspent capital project budgets (where applicable) as at 30 June 2024 (in addition to those already forecast) into the 2024-25 year. These subsequent carry forwards will be part of a revised budget, which will be reported back to Council.

3. Notes Council's decisions made during Deliberations as outlined in the minutes of the Extra ordinary Council meeting 29 May 2024 (Attachment 1 to the agenda report).
4. Notes that the NZ Transport Agency Waka Kotahi Subsidy for Transport Activities will not be finalised until later this year. Once this has been finalised, Council will be able to provide direction on how local share will be deployed to address any gaps in funding while further noting it is likely further changes to Central Government Transport subsidy will require a review of revenue/rates and/or service delivery through a future Annual Plan or Long Term Plan Amendment process.
5. Authorises the Chief Executive to make any necessary drafting, typographical or presentation changes to the 2024-34 Long Term Plan document.

On the motion being put Cr Golightly called for a division:

	For	Against
His Worship the Mayor Vince Cocurullo	X	
Cr Gavin Benney	X	
Cr Nicholas Connop	X	
Cr Ken Couper	X	
Cr Jayne Golightly		X
Cr Phil Halse	X	
Cr Deborah Harding	X	
Cr Patrick Holmes	X	
Cr Scott McKenzie	X	
Cr Marie Olsen	X	
Cr Carol Peters	X	
Cr Simon Reid	X	
Cr Paul Yovich	X	
Results	12	1

The motion was Carried (12 to 1)

Secretarial Note: Correction to Minutes 29 May 2024 acknowledged. The error in the recording of the decision/voting on the Aquatic Centre Repairs, has no material impact on the adoption of the LTP and will be addressed through a 'Correction to the Minutes' report to Council.

4.4 2024-2025 Rates Resolution

Moved By His Worship the Mayor

Seconded By Cr Ken Couper

That the Council:

1. Having adopted the 2024-34 Long Term Plan, including the 2024-25 Funding Impact Statement, resolves to set the following rates in accordance with the Local Government (Rating) Act 2002 for the financial year commencing on 1 July 2024 and ending on 30 June 2025:

a. General Rates

Rate/Differential category	Basis of assessment	Including GST
General Rates		
Uniform Annual General Charge	Per separately used or inhabited part of a rating unit *	\$821.00
Residential category**	Per \$ of land value	\$0.0027338
Multi-Unit category**	Per \$ of land value	\$0.0054676
Miscellaneous category**	Per \$ of land value	\$0.0027338
Rural category**	Per \$ of land value	\$0.0039244
Commercial and Industrial category**	Per \$ of land value	\$0.0147841

b. Targeted Rates

Rate/Differential category	Basis of assessment	Including GST
Sewerage Rates (Connected to wastewater system)		
Residential category**	Per separately used or inhabited part of a rating unit*	\$928.00
Other – non-residential**	Per pan or urinal	\$601.00
Water Rates		
Consumption charge <i>Note: where an invoice for water by meter relates to a period that spans two financial years, the consumption over the period will be pro-rated (i.e. the amount of water consumed or supplied in the first year will be charged at the first year's</i>	Volume of metered water consumed per cubic metre	\$3.38

<i>amount per cubic metre, and the amount consumed or supplied in the second financial year will be charged at the second year's amount per cubic metre).</i>			
Supply charge (metered)	Per separately used or inhabited part of a rating unit to which the water is supplied*	\$40.00	
Availability charge	Per separately used or inhabited part of a rating unit for which the water is available to be supplied*	\$40.00	
Uniform charge (unmetered)	Per separately used or inhabited part of a rating unit to which the water is supplied*	\$555.00	
Backflow preventer charge	Per water supply connection, based on the nature of connection		
	15/20mm connection	\$94.22	
	25mm connection	\$95.50	
	32mm connection	\$112.98	
	40mm connection	\$115.63	
	50/60mm connection	\$119.96	
	80/100mm connection	\$302.13	
	150mm connection	\$353.69	
	200/250mm connection	\$585.79	
Hikurangi Swamp			
Hikurangi Swamp Special Rating District	Per hectare of land in the Hikurangi Swamp Special Rating District based on location within that area***		
	Class A approx 2,485ha	\$234.12	
	Class B approx 1,425ha	\$210.70	
	Class C approx 1,342ha	\$163.87	
	Class D approx 1,970ha	\$23.40	
	Class E approx 1,106ha	\$11.71	
	Class F approx 32,354ha	\$4.68	
Hikurangi Swamp Drainage Rating District	Per hectare of land in the Hikurangi Swamp Drainage Rating		

	District based on location within that area*** Class A approx 5,592 ha Class F approx 12,076ha	\$23.69 \$2.37
Roading seal extension rates		
Attwood Road	Per rating unit within the area of benefit ***	\$920.00
Brooks Road	Per rating unit within the area of benefit ***	\$920.00
Glenmohr Road	Per rating unit within the area of benefit ***	\$1150.00
Knight Road	Per rating unit within the area of benefit ***	\$1150.00
Massey Road	Per rating unit within the area of benefit ***	\$920.00
Mountain View Road	Per rating unit within the area of benefit ***	\$1150.00
Nook Road	Per rating unit within the area of benefit ***	\$920.00
Tahunatapu Road	Per rating unit within the area of benefit ***	\$920.00
Tudehope Road	Per rating unit within the area of benefit ***	\$1150.00
Waiotoi Road	Per rating unit within the area of benefit ***	\$920.00
* The definition of a separately used or inhabited part of a rating unit can be found in the Funding Impact Statement section of Council's 2024-34 Long Term Plan. ** The definitions of these differential categories can be found in the Funding Impact Statement section of Council's 2024-34 Long Term Plan. *** The definitions of these specified and defined area of benefits can be found in the Funding Impact Statement section of Council's 2024-34 Long Term Plan.		
2. Resolves that the due dates for payment of rates and imposition of penalties are as follows: a. Due dates and penalty dates for rates other than metered water rates (volumetric, supply and backflow preventer charges) The due dates for rates other than metered water rates (volumetric, supply and backflow preventer charges) are set out in the table below. Pursuant to Section 57 of the Local Government (Rating) Act 2002 a penalty of ten percent (10%) will be added to the amount of each instalment which remains unpaid after the due date for payment with penalties to be added on the penalty dates specified in the table below:		

Instalment	Due date for payment	Date penalty will be added
One	20 August 2024	22 August 2024
Two	20 November 2024	23 November 2024
Three	20 February 2025	24 February 2025
Four	20 May 2025	22 May 2025

b. Due dates and penalty dates for metered water rates (volumetric, supply and backflow preventer charges)

Water accounts are processed monthly, two-monthly or six-monthly. The due dates of these accounts will be relative to the consumer's cyclic billing period and will apply as specified in the table below:

Month water rates invoice issued	Due date for payment
July 2024	20 August 2024
August 2024	20 September 2024
September 2024	20 October 2024
October 2024	20 November 2024
November 2024	20 December 2024
December 2024	20 January 2025
January 2025	20 February 2025
February 2025	20 March 2025
March 2025	20 April 2025
April 2025	20 May 2025
May 2025	20 June 2025
June 2025	20 July 2025

Penalties will be added to water rates (volumetric, supply and backflow preventer charges) not paid by the due date under Section 57 of the Local Government (Rating) Act 2002. A penalty of ten percent (10%) will be applied to any portion of water rates unpaid after the due date, at the penalty dates specified in the table below:

Month water rates invoice issued	Date penalty will be added
July 2024	22 August 2024
August 2024	24 September 2024
September 2024	23 October 2024
October 2024	22 November 2024
November 2024	23 December 2024
December 2024	22 January 2025
January 2025	24 February 2025
February 2025	24 March 2025
March 2025	23 April 2025
April 2025	22 May 2025
May 2025	24 June 2025
June 2025	23 July 2025

3. Resolves that additional penalty charges will be applied in accordance with section 58 of the Local Government (Rating) Act 2002, with a penalty of ten percent (10%) being added to any unpaid rates (including penalties previously added and water rates) from previous rating years that remain unpaid as at 16 July 2024. This penalty will be added on 16 September 2024.

On the motion being put Cr Golightly called for a division:

	For	Against
His Worship the Mayor Vince Cocurullo	X	
Cr Gavin Benney	X	
Cr Nicholas Connop	X	
Cr Ken Couper	X	
Cr Jayne Golightly		X
Cr Phil Halse	X	
Cr Deborah Harding	X	
Cr Patrick Holmes	X	
Cr Scott McKenzie	X	
Cr Marie Olsen		X
Cr Carol Peters	X	
Cr Simon Reid		X
Cr Paul Yovich		X
Results	9	4

The motion was Carried (9 to 4)

5. Public Excluded Business / Rāhui Tangata

There was no business conducted in public excluded.

6. Closure of Meeting / Te katinga o te Hui

His Worship the Mayor closed the meeting at 9.52am with a karakia/prayer.

Confirmed this 25th day of July 2024

His Worship the Mayor Vince Cocurullo (Chairperson)